

UNITED STATES DISTRICT COURT  
EASTERN DISTRICT OF NEW YORK

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MARCUS BROWN,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER  
DOUGLAS CORSO, shield # 4824, DETECTIVE ERIC  
COX, shield # 02077, DETECTIVE PHILIP ATKINS,  
shield # 00742,

Defendants.

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**FIRST AMENDED  
COMPLAINT**

CV 11 4436 (ERK) (RER)

Jury Trial Demanded

**PRELIMINARY STATEMENT**

1. Plaintiff brings this civil rights action against the City of New York and three members of the New York City Police Department (“NYPD”) alleging that, on July 9, 2010, defendants violated his rights under 42 U.S.C. § 1983, the Fourth Amendment to the United States Constitution and New York state law by falsely arresting him, using unreasonable force on him and illegally strip searching him. Plaintiff was released from custody over 24 hours later on July 10, 2010, at approximately 5:00 p.m., when the District Attorney’s Office declined to prosecute him. Plaintiff seeks compensatory and punitive damages, attorney’s fees and costs and such other and further relief as the court deems just and proper.

**JURISDICTION & VENUE**

2. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth Amendment to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343.

3. Plaintiff invokes the supplemental jurisdiction of this Court pursuant to 28 U.S.C. § 1367 to hear and decide his New York state law claims of false arrest, assault and battery which form part of the same case and controversy as his federal claims under Article III of the United States Constitution.

4. Because plaintiff's state law claims are brought only against the individual defendants and allege intentional conduct, no notice of claim is required. In suits against municipal or county employees, as opposed to suits against municipalities or counties themselves, "service of the notice of claim upon the public corporation shall be required only if the corporation has a statutory obligation to indemnify such person under this chapter or any other provision of law." N.Y. Gen. Mun. Law § 50-e(1)(b). Although a municipality is required to "indemnify and save harmless its employees in the amount of any judgment obtained against such employees in any state or federal court, ... the duty to indemnify and save harmless ... shall not arise where the injury or damage resulted from intentional wrongdoing or recklessness on the part of the employee." N.Y. Gen. Mun. L. § 50-k(3).

5. Venue is proper in the Eastern District of New York pursuant to 28 U.S.C. § 1391(b) and (c) because a substantial part of the events giving rise to plaintiff's claims occurred in this District and because some or all of the defendants reside in this District.

### **PARTIES**

6. Plaintiff is a resident of Brooklyn. Plaintiff's wife works as a nursing assistant and plaintiff is a stay-at-home father for his two children.

7. The City of New York is a municipal corporation organized under the laws of the State of New York

8. The individual defendants are members of the NYPD. These defendants were acting under color of state law and in their capacities as members of the NYPD at all relevant times. The defendants are liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from unconstitutional conduct. The defendants are sued in their individual capacities.

### **STATEMENT OF FACTS**

9. On July 9, 2010, at approximately 2:30 p.m., the individual defendants illegally seized plaintiff, who was riding his bicycle on Lenox Road between Bedford Avenue and Rogers Avenue in Brooklyn.

10. At all relevant times, plaintiff did not commit a crime or violation.

11. The defendants, acting in concert, pushed the unresisting plaintiff face-first into a police vehicle and handcuffed him excessively tight causing pain and bruising.

12. Plaintiff was taken by van to the 67<sup>th</sup> Precinct.

13. In the precinct, the defendants, acting in concert, illegally strip searched plaintiff.

14. The defendants did not find anything illegal on plaintiff.

15. While in the precinct, none of the defendants provided plaintiff with food or water.

16. While plaintiff was held in the precinct, the defendants caused plaintiff's designated arresting officer, Detective Rodriguez, to misrepresent in police reports that plaintiff had committed an unknown crime.

17. On July 10, 2010, plaintiff was taken to Brooklyn Central Booking.

18. Plaintiff was held in cells in Brooklyn Central Booking which were severely overcrowded, filthy, unsanitary and infested with roaches and rodents. The toilets were covered in feces, urine and other types of human discharge. There were no mats, cots or beds for plaintiff and the other detainees to sleep on.

19. While plaintiff was held in Central Booking, the defendants, acting in concert, misrepresented to the Kings County District Attorney's Office that plaintiff had committed a crime.

20. Plaintiff was released from custody on July 10, 2010, at approximately 5:00 p.m., because the District Attorney's Office declined prosecution.

21. Plaintiff suffered damage as a result of defendants' actions. Plaintiff suffered an unlawful detention, a loss of liberty, emotional distress, fear, anxiety, humiliation, embarrassment, pain and physical injuries.

### **FIRST CLAIM**

#### **(FALSE ARREST)**

22. Plaintiff repeats the foregoing allegations.

23. At all relevant times, plaintiff did not commit a crime or violation.

24. Despite plaintiff's innocence, the defendants arrested plaintiff or failed to intervene to prevent his false arrest.

25. Accordingly, defendants are liable to plaintiff under the Fourth Amendment for false arrest.

### **SECOND CLAIM**

#### **(UNREASONABLE FORCE)**

26. Plaintiff repeats the foregoing allegations.

27. Defendants' use of force upon plaintiff or failure to intervene to prevent this use of force, as described herein, was objectively unreasonable and caused plaintiff pain and injury.

28. Accordingly, defendants are liable to plaintiff under the Fourth Amendment for using unreasonable force.

**THIRD CLAIM**

**(ILLEGAL STRIP SEARCH)**

29. Plaintiff repeats the foregoing allegations.

30. Defendants' strip search of plaintiff after his arrest was illegal because plaintiff had not committed a crime and because no officer had reasonable suspicion to believe that plaintiff was hiding illegal items under his clothes.

31. Accordingly, defendants are liable to plaintiff under the Fourth Amendment for illegally strip searching him.

**FOURTH CLAIM**

**(FAILURE TO INTERVENE)**

32. Plaintiff repeats the foregoing allegations.

33. Defendants had a reasonable opportunity to prevent the violations of plaintiffs' constitutional rights, but they failed to intervene.

34. Accordingly, defendants are liable to plaintiff under the Constitution for failing to intervene to prevent the violation of plaintiff's federal rights.

**FIFTH CLAIM**

**(*MONELL* CLAIM AGAINST THE CITY OF NEW YORK)**

35. Plaintiff repeats the foregoing allegations.

36. The City of New York is a “person” within the meaning of 42 U.S.C. § 1983.

37. The City of New York, through a policy, practice or custom, directly caused the constitutional violations suffered by plaintiff.

38. Upon information and belief, the City of New York, at all relevant times, was aware that the defendants and other members of the NYPD are unfit officers who have previously committed acts similar to those alleged herein, have a propensity for unconstitutional conduct and/or have been inadequately trained.

39. Numerous members of the NYPD have been arrested and convicted of such crimes as planting evidence on suspects, falsifying police reports, corruption, theft, selling narcotics, fixing tickets, driving under the influence of alcohol, vehicular homicide, assault and domestic violence.

40. Former NYPD Commissioner Bernard Kerik was convicted of corruption-related crimes in federal and state court and served time in federal prison.

41. In 2011, former NYPD narcotics officer Jerry Bowen was convicted of murder and attempted murder while under indictment for corruption.

42. In *Colon v. City of New York*, Nos. 09 CV 8, 09 CV 9 (JBW), 2009 WL 4263362 (E.D.N.Y. November 25, 2009), the federal court stated that an “[in]formal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department.”

43. Despite the above, the City exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline and monitor the defendants and other officers like them

44. The City's failure to act resulted in the violation of plaintiff's constitutional rights as described herein.

**SIXTH CLAIM**

**(FALSE ARREST UNDER STATE LAW)**

45. Plaintiff repeats the foregoing allegations.

46. At all relevant times, plaintiff did not commit a crime or violation.

47. Despite plaintiff's innocence, the defendants arrested plaintiff or failed to intervene to prevent his false arrest.

48. Accordingly, the individual defendants are liable to plaintiff under New York state law for false arrest.

**SEVENTH CLAIM**

**(ASSAULT)**

49. Plaintiff repeats the foregoing allegations.

50. Defendants' use of force upon plaintiff and strip search of plaintiff placed plaintiff in fear of imminent harmful and offensive physical contacts which injured him.

51. Accordingly, the individual defendants are liable to plaintiff under New York state law for assault.

**EIGHTH CLAIM**

**(BATTERY)**

52. Plaintiff repeats the foregoing allegations.

53. Defendants' use of force upon plaintiff was an offensive and nonconsensual physical contact which injured him.

54. Accordingly, the individual defendants are liable to plaintiff under New York state law for battery.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Attorney's fees and costs;
- d. Such other and further relief as the Court may deem just and proper.

DATED: January 8, 2012

/s/

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